

Vijay Pratap Nishad v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 August 2017 · WRIT - C No. 35139 of 2017 · **Writ not entertained; relegated to compounding or EE dispute.**

HEADNOTE

Writ challenging realisation of an electricity bill arising from a Section 135 theft case not entertained. Remedies are compounding under Section 152 of the Electricity Act, 2003 or, if the assessment is disputed, a dispute before the Executive Engineer under the U.P. Electricity Supply Code, 2005. Petition consigned to records.

FACTUAL SUMMARY

Vijay Pratap Nishad approached the Allahabad High Court by a writ petition against the State of U.P. and the electricity department, contending that he had been unnecessarily burdened with realization of an electricity bill which did not concern him. The record showed that a case of electricity theft had been registered against him under Section 135 of the Electricity Act, 2003. Counsel for the petitioner and for the Electricity Department were heard.

HOLDING-UNITS

INTERPLAY · EA2003::152

compounding and Supply Code dispute as remedies for s.135 theft bill

HOLDING

A writ petition challenging realisation of an electricity bill arising from a theft case registered under Section 135 of the Electricity Act, 2003 will not be entertained. The petitioner's remedies are compounding under Section 152 of the 2003 Act or, if disputing any assessment arising therefrom, a dispute before the Executive Engineer under the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy

Writ challenging realisation of an electricity bill arising from a Section 135 theft case not entertained. Remedies are compounding under Section 152 of the Electricity Act, 2003 or, if the assessment is disputed, a dispute before the Executive Engineer under the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL CONCERNED THE PETITIONER, AND THE CORRECTNESS OF THE SECTION 135 THEFT ASSESSMENT

Writ not entertained on the merits; left to compounding under s.152 or the Executive Engineer under the Supply Code. ¶ 1